

CAFÉ BRAZIL & CELL TOWER

(Part of Campbell Way Center Portfolio)

2071 North Central Expressway, Richardson, TX 75080



Philip Levy
Executive Managing Director
(972) 755-5225
PLevy@mmreis.com

Chris Gainey
Senior Managing Director
(817) 932-6122
chris.gainey@marcusmillichap.com

Marcus & Millichap
LEVY RETAIL GROUP

OFFERING MEMORANDUM

CONFIDENTIALITY & DISCLAIMER

The information contained in the following Marketing Brochure is proprietary and strictly confidential. It is intended to be reviewed only by the party receiving it from Marcus & Millichap and should not be made available to any other person or entity without the written consent of Marcus & Millichap. This Marketing Brochure has been prepared to provide summary, unverified information to prospective purchasers, and to establish only a preliminary level of interest in the subject property. The information contained herein is not a substitute for a thorough due diligence investigation. Marcus & Millichap has not made any investigation, and makes no warranty or representation, with respect to the income or expenses for the subject property, the future projected financial performance of the property, the size and square footage of the property, and improvements, the presence or absence of contaminating substances, PCB's or asbestos, the compliance with State and Federal regulations, the physical condition of the improvements thereon, or the financial condition or business prospects of any tenant, or any tenant's plans or intentions to continue its occupancy of the subject property. The information contained in this Marketing Brochure has been obtained from sources we believe to be reliable; however, Marcus & Millichap has not verified, and will not verify, any of the information contained herein, nor has Marcus & Millichap conducted any investigation regarding these matters and makes no warranty or representation whatsoever regarding the accuracy or completeness of the information provided. All potential buyers must take appropriate measures to verify all of the information set forth herein.

Non-Endorsement Notice

Marcus & Millichap is not affiliated with, sponsored by, or endorsed by any commercial tenant or lessee identified in this marketing package. The presence of any corporation's logo or name is not intended to indicate or imply affiliation with, or sponsorship or endorsement by, said corporation of Marcus & Millichap, its affiliates or subsidiaries, or any agent, product, service, or commercial listing of Marcus & Millichap, and is solely included for the purpose of providing tenant lessee information about this listing to prospective customers. ALL PROPERTY SHOWINGS ARE BY APPOINTMENT ONLY. PLEASE CONSULT YOUR MARCUS & MILLICHAP AGENT FOR MORE DETAILS.

This information has been secured from sources we believe to be reliable, but we make no representations or warranties, express or implied, as to the accuracy of the information. References to square footage or age are approximate. Buyer must verify the information and bears all risk for any inaccuracies. Marcus & Millichap is a service mark of Marcus & Millichap Real Estate Investment Services, Inc. © 2026 Marcus & Millichap. All rights reserved.

CAFÉ BRAZIL & CELL TOWER

2071 North Central Expressway,
Richardson, TX 75080

04 PROPERTY OVERVIEW

09 LOCATION OVERVIEW

14 FINANCIAL ANALYSIS

20 RENT COMPARABLES

24 DEMOGRAPHICS & MARKET OVERVIEW



EXECUTIVE SUMMARY

INVESTMENT OVERVIEW

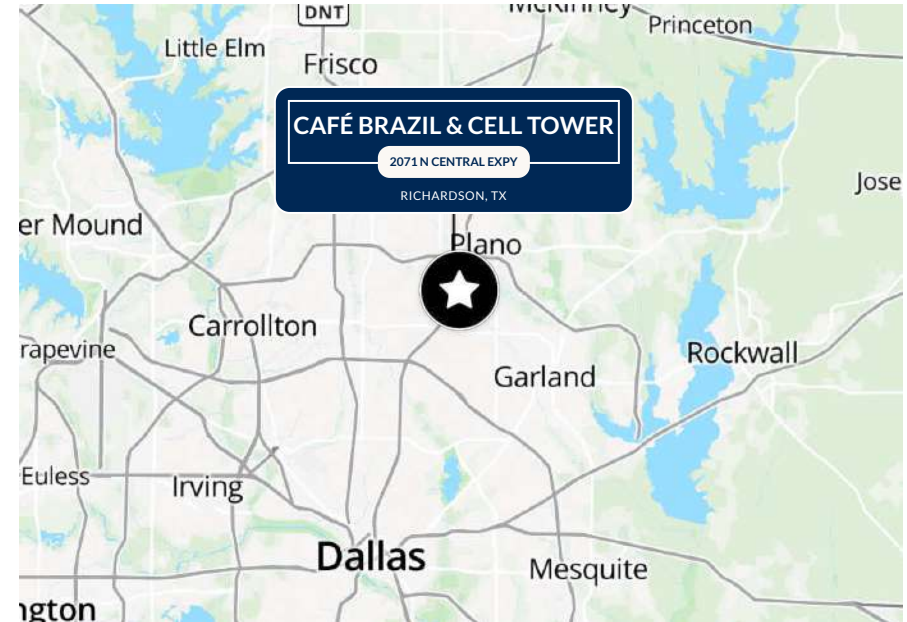
Purchase Price:	\$2,369,450
Building Size:	3,250 SF
Lot Size:	0.65 Acres
Price/SF:	\$729.06
Cap Rate:	6.00%
NOI:	\$142,167
Year Built:	1978
County:	Dallas
Ownership Type:	Fee Simple

DEMOGRAPHICS	1 Mile	3 Mile	5 Mile
Total Households	4,548	44,647	146,279
Total Population	9,363	111,724	382,691
Avg Household Income	\$113,043	\$109,536	\$97,589

PROPERTY OVERVIEW

Marcus & Millichap is pleased to present the exclusive opportunity to acquire Café Brazil & Cell Tower, one of five retail assets comprising the Campbell Way Center Portfolio in Richardson, Texas. Investors may acquire this property individually or combine it with one or more adjacent properties within the Campbell Way Center Portfolio to create a larger institutional-quality retail investment.

Situated along North Central Expressway (US-75), the property benefits from exceptional freeway visibility, strong daily traffic counts, and a highly educated, affluent consumer base. The asset is fully occupied by Café Brazil and a long-term cell tower ground lease, providing durable cash flow with scheduled rent increases while providing meaningful long-term upside through future mark-to-market rental opportunities. Located within Richardson's nationally recognized Telecom Corridor, the property is surrounded by major corporate campuses, regional retail destinations, and one of the strongest daytime employment populations in North Texas.



INVESTMENT OVERVIEW



INSTITUTIONAL-QUALITY PORTFOLIO OPTIONALITY

One of five contiguous retail assets within the Campbell Way Center Portfolio. Investors may acquire this property individually or assemble multiple assets to create a larger institutional-quality investment in one of Richardson's premier retail corridors.



DUAL INCOME STREAM WITH LONG-TERM CONTRACTUAL GROWTH

Diversified income stream from Café Brazil and a long-term telecommunications ground lease provides stable cash flow, contractual rental growth, and downside protection through two independent income sources.



SIGNIFICANT MARK-TO-MARKET RENT UPSIDE

Current retail rents remain below today's market, providing investors the opportunity to increase NOI through future lease renewals while benefiting from contractual annual rent escalations in the existing leases.



PREMIER TELECOM CORRIDOR LOCATION

Located within Richardson's nationally recognized Telecom Corridor, home to more than 25 million square feet of office space, approximately 130,000 employees, and many of North Texas' largest technology, healthcare, financial, and defense employers.



EXCEPTIONAL FREEWAY VISIBILITY & ACCESS

Prominent frontage along North Central Expressway (US-75) with exposure to more than 237,000 vehicles per day, multiple points of ingress and egress, and portfolio-wide visibility enhanced by four pylon signs fronting the freeway.



SURROUNDED BY DESTINATION RETAIL & MULTIFAMILY

Walking distance to Canyon Creek Shopping Center and Richardson Plaza, featuring La La Land Coffee, CAVA, Torchy's Tacos, Chick-fil-A, First Watch, Velvet Taco, Snappy Salads and numerous other high-performing restaurants, while also benefiting from nearby luxury apartment communities that continue to expand the area's customer base.



IRREPLACEABLE INFILL REAL ESTATE

Located within one of DFW's most established retail corridors where limited available land, mature surrounding development, and strong barriers to entry support long-term occupancy, rental growth, and asset appreciation.



PROPERTY OVERVIEW



PROPERTY DESCRIPTION

Café Brazil & Cell Tower consists of a 3,250-square-foot freestanding restaurant situated on approximately 0.65 acres with an additional income-producing cell tower ground lease. The property is fully leased, providing investors with diversified income from a long-term restaurant lease and telecommunications ground lease. The asset is one of five contiguous offerings comprising the Campbell Way Center Portfolio. Investors have the flexibility to purchase this property independently or assemble multiple adjacent parcels to create a larger institutional-quality retail investment. The center benefits from outstanding freeway exposure, multiple points of ingress and egress, and enhanced visibility through four prominent pylon signs fronting North Central Expressway, creating exceptional visibility, branding opportunities, and long-term merchandising value across the Campbell Way Center Portfolio.

LOCATION DESCRIPTION

Campbell Way Center is strategically positioned along North Central Expressway (US-75) at Campbell Road in Richardson, one of the Dallas-Fort Worth metroplex's premier retail and employment corridors. The portfolio is located within Richardson's nationally recognized Telecom Corridor, home to more than 25 million square feet of office space, approximately 130,000 employees, and thousands of technology, healthcare, financial services, telecommunications, and defense companies. Major employers including State Farm, Blue Cross Blue Shield of Texas, Texas Instruments, Raytheon, Cisco, RealPage, Lennox, GEICO, and AT&T generate one of the strongest daytime employment populations in North Texas, providing consistent demand for restaurants, service retailers, and neighborhood retail. The property also benefits from immediate access to US-75, President George Bush Turnpike, and I-635, providing outstanding regional connectivity throughout the Dallas-Fort Worth Metroplex.

The portfolio is surrounded by one of Richardson's most established restaurant and lifestyle destinations and is within walking distance of Canyon Creek Shopping Center and Richardson Plaza, featuring an impressive collection of destination retailers and restaurants including La La Land Coffee, CAVA, Torchy's Tacos, Velvet Taco, Chick-fil-A, First Watch, Snappy Salads, Freebirds, Mint Fusion, Great Outdoors, Panera Bread, Starbucks, and numerous additional dining concepts that drive traffic throughout the day and evening. The immediate trade area also continues to benefit from significant multifamily development, including The Caroline Eastside, The Mallory Eastside, and MAA Eastside apartments, placing hundreds of luxury apartment units within walking distance of the center while the University of Texas at Dallas, CityLine, and the Richardson Innovation Quarter continue to fuel long-term residential and employment growth.

With freeway visibility exceeding 237,000 vehicles per day, affluent surrounding demographics, exceptional daytime employment, and irreplaceable infill real estate, Campbell Way Center represents one of the premier neighborhood retail investment opportunities in the Richardson submarket.

CAMPELL WAY CENTER PORTFOLIO

May be Purchased Together or Separately

KOLACHE FACTORY & MF CREATIVE DESIGNS

2051 N. Central Expy., Richardson, TX 75080

\$1,516,700

Price

6.00%

Cap Rate

REPLAT IN PROCESS, WITH FINAL LOT SIZE
TBD PRIOR TO CLOSING.

[View Property Details](#)

2100 ALAMO (MATTISON AVE ANCHORED)

2100 Alamo Rd., Richardson, TX 75080

\$9,621,000

Price

6.75%

Cap Rate

REPLAT IN PROCESS, WITH FINAL LOT SIZE
TBD PRIOR TO CLOSING.

[View Property Details](#)

INTERACTIVE PORTFOLIO

Select any listing to
view additional
property information.

WALLIS BANK & MEDITERRANEAN GRILL

2067 N. Central Expy., Richardson, TX 75080

\$3,133,200

Price

6.00%

Cap Rate

[View Property Details](#)

TAQUERIA & TAMALERIA NUEVO LEON & PALETERIA NUEVO LEON

2069 N. Central Expy., Richardson, TX 75080

\$3,300,000

Price

6.00%

Cap Rate

[View Property Details](#)

Café Brazil & Cell Tower

2071 N. Central Expy., Richardson, TX 75080

\$2,369,450

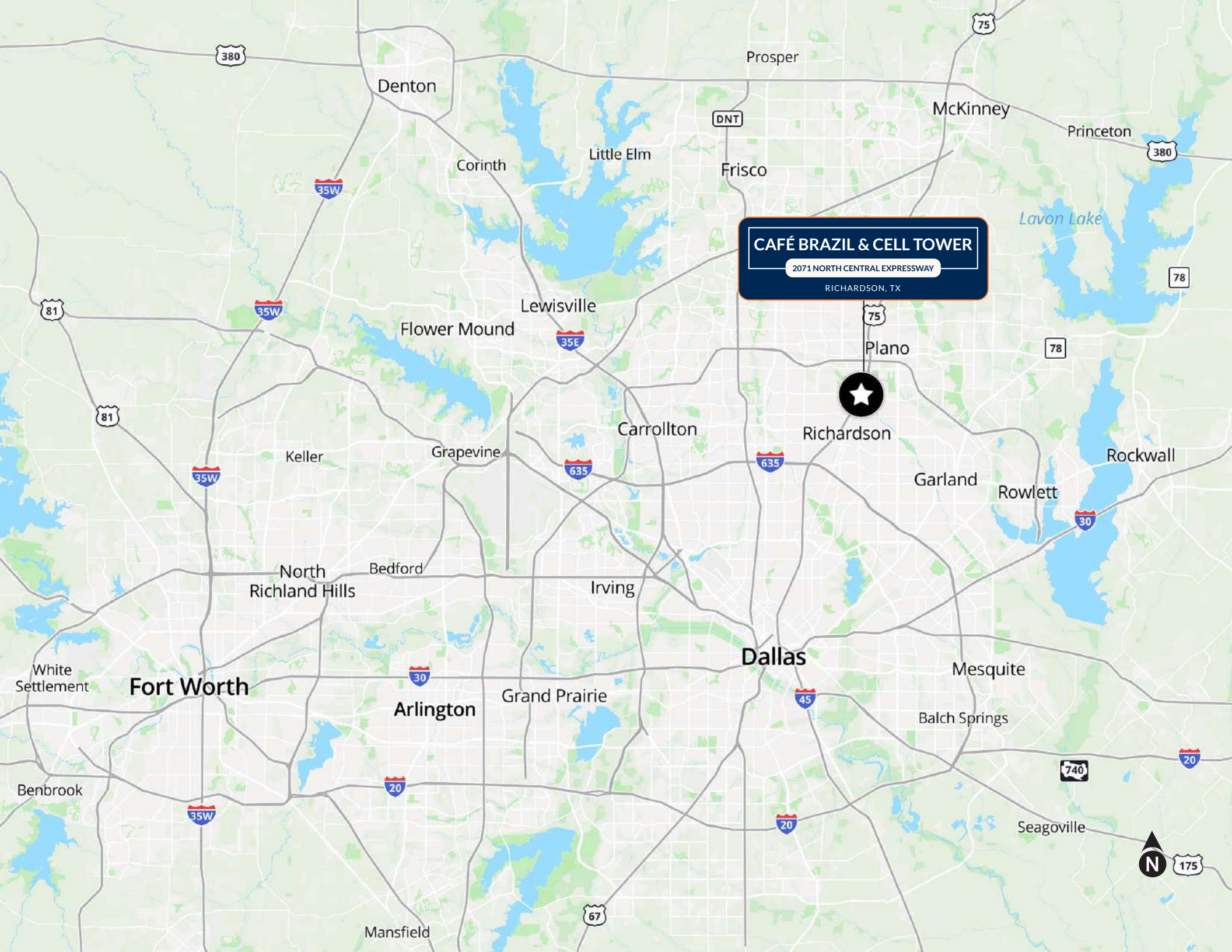
Price

6.00%

Cap Rate

[View Property Details](#)





CAFÉ BRAZIL & CELL TOWER

2071 NORTH CENTRAL EXPRESSWAY

RICHARDSON, TX

**CITY
LINE**

204-ACRE OPEN-AIR
DEVELOPMENT



BlueCross BlueShield
of Texas

RENAISSANCE[®]
DALLAS RICHARDSON HOTEL

EISEMANN CENTER
For Publishing, TV and Corporate Properties

AT&T
CORPORATE OFFICE

Hampton
Inn & Suites
by Hilton

SONESTA
select

GEICO
CORPORATE OFFICE

element
by Wyndham

PR PARKS
RESIDENTIAL

THE
FLATS AT PALISADES
575 UNITS/5 STORIES

WEST COAST
UNIVERSITY

HAT
CREEK

REALPAGE

INTERNATIONAL
LEADERSHIP OF TEXAS,
HEADQUARTERS OFFICE

Hilton

N COLLINS BLVD
5,569 VPD

AMF

Ali Baba
MEDITERRANEAN & ARABIAN

CAFÉ BRAZIL & CELL TOWER
2071 N. Central Expy.,
Richardson, TX 75080

TAQUERIA & TAMALERIA NUEVO LEON
& PALETERIA NUEVO LEON

WALLIS BANK &
MEDITERRANEAN GRILL

KOLACHE FACTORY &
MF CREATIVE DESIGNS

2100 ALAMO
(MATTISON AVE ANCHORED)

TNT Dental
MARKETING

INTERSTATE
75

256,977 VPD

HOME ZONE[®]
Texas Born. Family Owned.[®]

ALAMO
TRAMPOLINE PARK[®]



THE CORE DISTRICT
DOWNTOWN
LOCKWOOD
HEIGHTS
INTERURBAN
CHINATOWN



CHASE



MCDONALD'S



THE MALLORY EASTSIDE
281 UNITS

CAROLINE EASTSIDE
384 UNITS

EASTSIDE MIXED-USE DEVELOPMENT
67,000+ SF RETAIL | 180,000 SF CLASS A OFFICE
(EASTSIDE CENTRE) | 1,100+ LUXURY APARTMENT UNITS



E CAMPBELL RD 39,076 VPD

INTERSTATE 75 256,977 VPD

KOLACHE FACTORY & MF CREATIVE DESIGNS

WALLIS BANK & MEDITERRANEAN GRILL

TAQUERIA & TAMALERIA NUEVO LEON & PALETERIA NUEVO LEON

2100 ALAMO (MATTISON AVE ANCHORED)

CAFÉ BRAZIL & CELL TOWER
2071 N. Central Expy.,
Richardson, TX 75080

PRESIDENT GEORGE BUSH TPKE 148,747 VPD



TELECOM CORRIDOR
25M+ SF OF OFFICE SPACE
5,700+ COMPANIES
130,000 JOBS



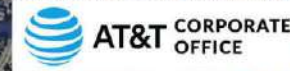
N JUPITER RD 34,124 VPD

N PLANO RD 39,456 VPD

CAMPBELL WAY CENTER



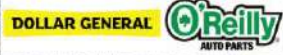
29,886 STUDENTS



E CAMPBELL RD 39,076 VPD



E ARAPAHO RD 42,334 VPD



W BELT LINE RD 29,222 VPD



FINANCIAL SUMMARY

INVESTMENT OVERVIEW

YEAR 1

Price	\$2,369,450
Price per SF	\$729.06
Total Return (Year 1)	\$142,167
CAP Rate	6.00%

OPERATING DATA

YEAR 1

Gross Income	\$185,165
Operating Expenses	\$42,998
Net Operating Income	\$142,167

OPERATING STATEMENT

INCOME	Year 1	PER SF
Rental Income		
Scheduled Base Rental Income	\$142,167	\$43.74
Expense Reimbursement Income		
Real Estate Taxes	\$26,386	\$8.12
Insurance	\$665	\$0.20
CAM	\$8,947	\$2.75
Management Fees	\$7,000	\$2.15
Total Reimbursement Income	\$42,998	\$13.23
Effective Gross Income	\$185,165	\$56.97
OPERATING EXPENSES	YEAR 1	PER SF
Real Estate Taxes	\$26,386	\$8.12
Insurance	\$665	\$0.20
Common Area Maintenance (CAM)		
Utilities & Trash	\$3,296	\$1.01
Landscaping	\$1,051	\$0.32
Repairs & Maintenance	\$2,483	\$0.76
Porter Service	\$1,315	\$0.40
Parking Lot Maintenance	\$384	\$0.12
Security & Fire/Life Safety	\$419	\$0.13
Management Fees	\$7,000	\$2.15
Total Expenses	\$42,998	\$13.23
Net Operating Income	\$142,167	\$43.74

RENT ROLL

SUITE	TENANT NAME	UNIT SIZE (SF)	% OF GLA	LEASE START	LEASE END	ANNUAL RENT	RENT/SF	CHANGES ON	CHANGES TO	EXPENSE REIMBURSEMENT	OPTIONS	LEASE TYPE
	Café Brazil	3,250	100.00%	11/1/2014	10/31/2035	\$106,080.00	\$32.64	11/01/27	\$33.30	\$42,998	(2) 5-Yr @ FMV	NNN
								11/01/28	\$33.96			
								11/01/29	\$34.64			
								11/01/30	\$35.33			
								11/01/31	\$36.04			
								11/01/32	\$36.76			
								11/01/33	\$37.50			
								11/01/34	\$38.24			
	Dallas SMSA Tower Holdings, LP (1)			11/1/1994	6/1/2034	\$36,087.24		11/01/27	\$36,772			Ground Lease
								11/01/28	\$37,477			
								11/01/29	\$38,203			
								11/01/30	\$38,950			
								11/01/31	\$39,721			
								11/01/32	\$41,712			
								11/01/33	\$42,505			
								11/01/34	\$43,322			
TOTAL VACANT		0	0%									
TOTAL OCCUPIED		3,250	100%									
TOTAL		3,250	100%			\$142,167				\$42,998		

NOTES:

(1) The Lease is split between Tower & Ground Lease Rent, with annual increases for both. The Ground Lease expires June 1, 2034 (not concurrent term).

TENANT PROFILE



Cafe Brazil

UNIT SIZE	3,250 SF
% GLA	100%
YEAR FOUNDED	1991
LOCATIONS	6
GUARANTOR	Corporate
WEBSITE	cafebrazil.com

Café Brazil is an all-day café and restaurant chain founded in 1991 in the Lakewood neighborhood, originally starting as a small ten-table coffeehouse focused on specialty coffee and breakfast in a relaxed, eclectic setting. It has since expanded across the Dallas-Fort Worth metro area and is known for its 24-hour or late-night dining at many locations, offering a broad menu that spans breakfast, lunch, dinner, and “deep night” options, along with its signature bottomless roasted coffee program. The restaurant is especially popular for hearty American café fare such as omelets, chilaquiles, sandwiches, burgers, and chicken-and-waffles, and it has earned local recognition for both its food and its casual, welcoming atmosphere with free Wi-Fi and a neighborhood hangout vibe.



MF
900 SF

KOLACHE FACTORY

2,000 SF

MATTISON AVENUE
salon suites & spas

8,000 SF

UPTOWN
CHEAPSKATE

8,110 SF

AL'S BARBERS
1,000 SF

HERCULES
1,000 SF

PENDING LEASE
4,000 SF

ADEN CAFÉ
3,026 SF

PATIO

MEDITERRANEAN GRILL & GYRO
2,000 SF

WALLIS BANK
2,800 SF

PATIO

Nuevo Leon
2,500 SF

Nuevo Leon
3,500 SF

PATIO

DALLAS SMSA TOWER

PATIO

Café Brazil
NOT FOR ANCHORED CARRIER TRUCKS
3,250 SF

INTERSTATE 75

256,977 VPD



RENT COMPARABLES



Café Brazil & Cell Tower

Address	2071 North Central Expressway
City, State	Richardson, TX
Average Base Rent	\$32.64
Zip Code	75080
Occupancy	100%
GLA	3,250 SF
Parcel Size	0.65 AC
Year Built	1978
Tenants	Dallas SMSA Tower Holdings, LP Café Brazil



Eastside

Address	700 East Campbell Road
City, State	Richardson, TX
Average Base Rent	\$37.47
Zip Code	75081
Occupancy	100%
GLA	67,071 SF
Parcel Size	4.52 AC
Year Built	2007
Tenants	Frost Bank, 7-Eleven, Luxx Nail Bar, Sport Clips, Russo's New York Pizzeria



Richardson Restaurant Park

Address	746 S Central Expressway
City, State	Richardson, TX
Average Base Rent	\$34.63
Zip Code	75080
Occupancy	100%
GLA	5,940 SF
Parcel Size	5.085 AC
Year Built	2016
Tenants	The Halal Guys, Pokeworks, Texadelphia

RENT COMPARABLES



Campbell Collins Retail Center

Address	377 W Campbell Road
City, State	Richardson, TX
Average Base Rent	\$41.00
Zip Code	75080
Occupancy	100%
GLA	5,316 SF
Parcel Size	0.90 AC
Year Built	1981
Tenants	Dunkin', Texas Health Resources Breeze Urgent Care, Visionworks



Shire Retail Building

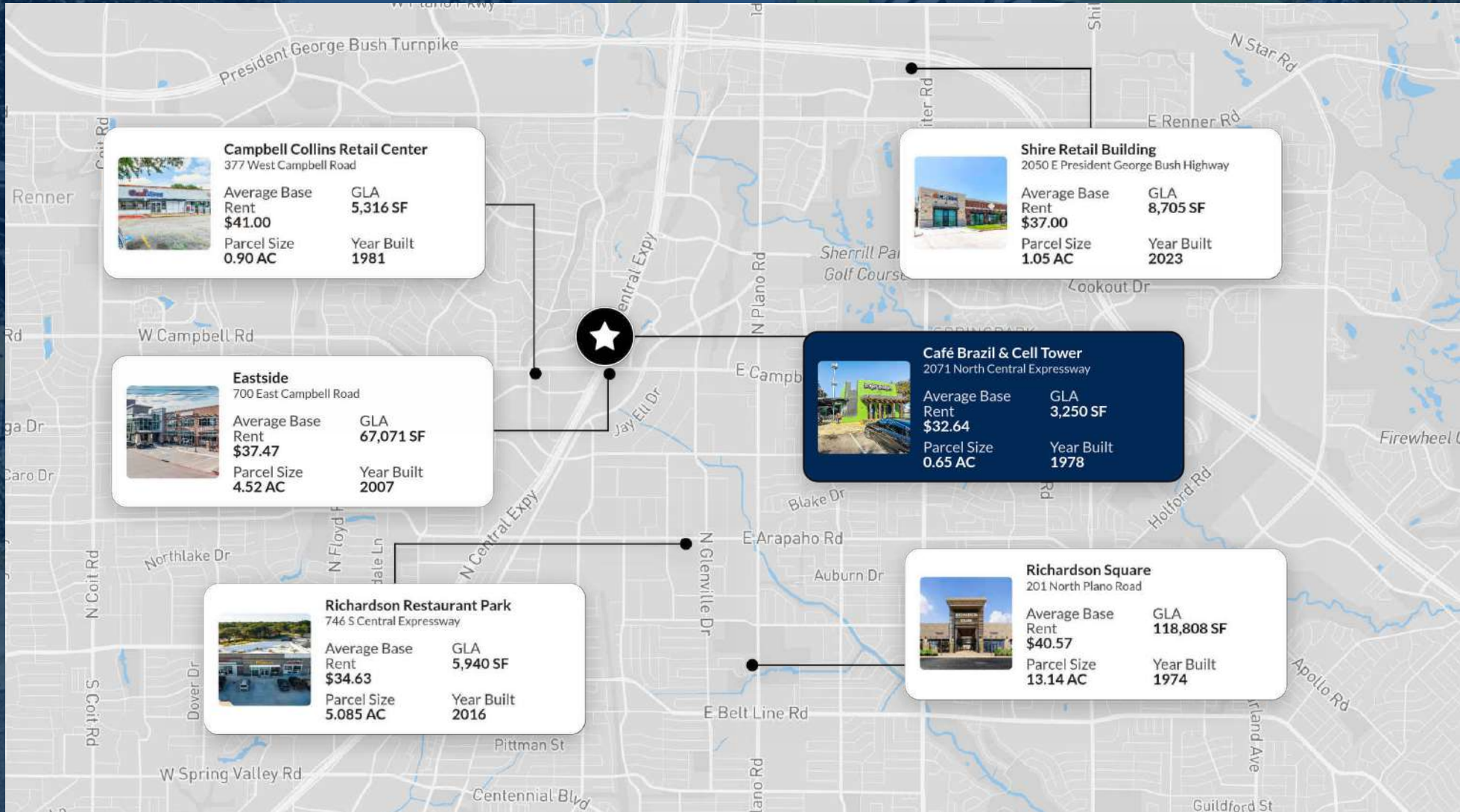
Address	2050 E President G. Bush Highway
City, State	Richardson, TX
Average Base Rent	\$37.00
Zip Code	75082
Occupancy	100%
GLA	8,705 SF
Parcel Size	1.05 AC
Year Built	2023
Tenants	Independence Title Company, CityVet, Stop-N-Go Gyros



Richardson Square

Address	201 Plano Road
City, State	Richardson, TX
Average Base Rent	\$40.57
Zip Code	75081
Occupancy	40%
GLA	118,808 SF
Parcel Size	13.14 AC
Year Built	1974
Tenants	Kpop Korean BBQ, Miniso, Somi Somi, Paris Baguette, Trung Nguyen Coffee

Property Name	Address	City, State	Zip Code	GLA	Occupancy	Parcel Size	Year Built	Average Base Rent/SF
Café Brazil & Cell Tower	2071 North Central Expressway	Richardson, TX	75080	3,250 SF	100%	0.65 AC	1978	\$32.64
Eastside	700 East Campbell Road	Richardson, TX	75081	67,071 SF	100%	4.52 AC	2007	\$37.47
Richardson Restaurant Park	746 S Central Expressway	Richardson, TX	75080	5,940 SF	100%	5.085 AC	2016	\$34.63
Campbell Collins Retail Center	377 W Campbell Road	Richardson, TX	75080	5,316 SF	100%	0.90 AC	1981	\$41.00
Shire Retail Building	2050 E President George Bush Highway	Richardson, TX	75082	8,705 SF	100%	1.05 AC	2023	\$37.00
Richardson Square	201 Plano Road	Richardson, TX	75081	118,808 SF	40%	13.14 AC	1974	\$40.57

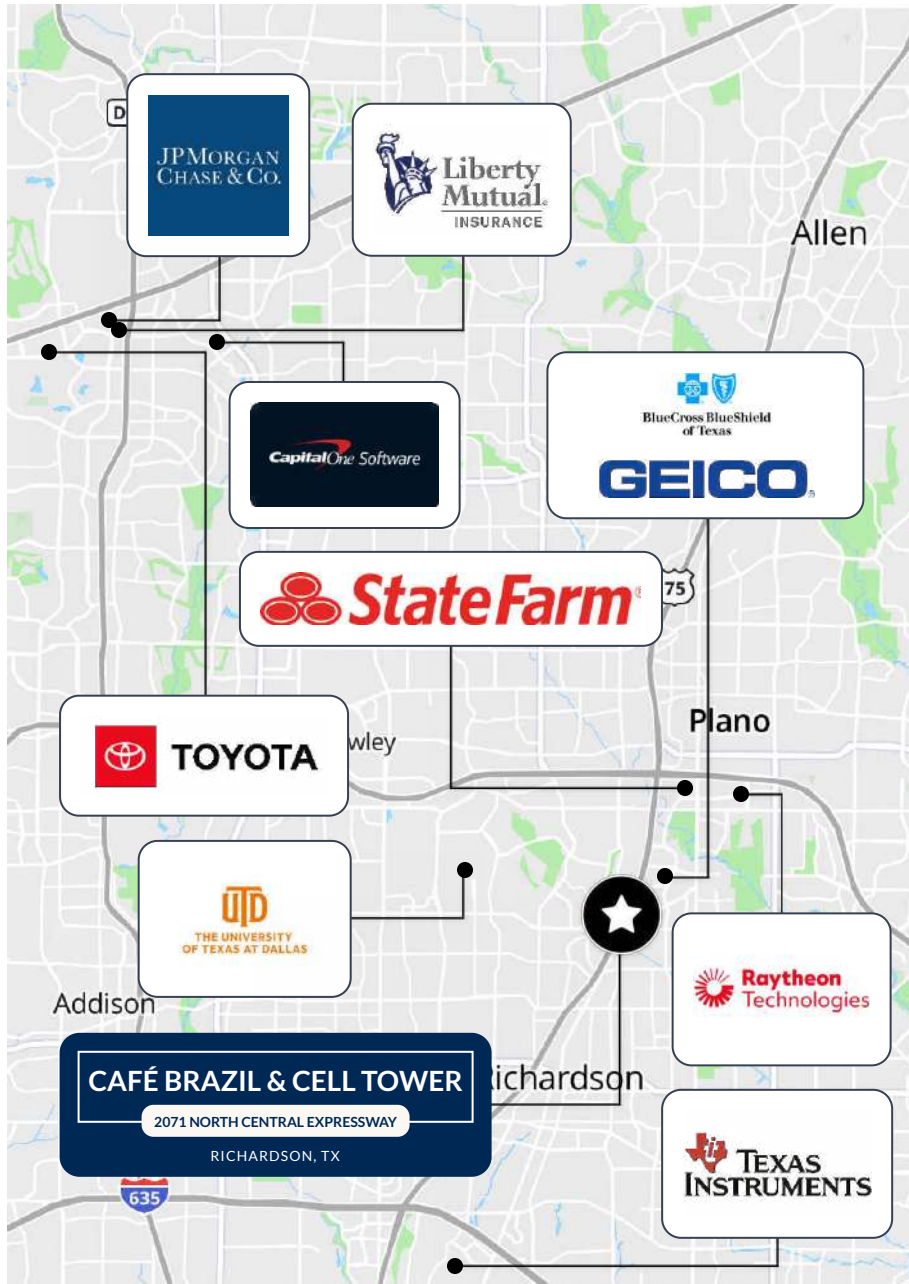




DEMOGRAPHICS

Population	1 Mile	3 Mile	5 Mile
2029 Projection	9,869	120,291	411,825
2024 Estimate	9,363	111,724	382,691
2020 Census	8,842	108,439	376,450
Growth 2024-2029	5.40%	7.67%	7.61%
Growth 2020-2024	5.89%	3.03%	1.66%
2024 Population by Hispanic Origin	1,201	18,852	103,056
2024 Population	9,363	111,724	382,691
White	5,611 (59.93%)	62,619 (56.05%)	171,357 (44.78%)
Black	1,197 (12.78%)	12,109 (10.84%)	59,210 (15.47%)
Am. Indian & Alaskan	21 (0.22%)	384 (0.34%)	2,008 (0.52%)
Asian	1,246 (13.31%)	18,064 (16.17%)	55,278 (14.44%)
Hawaiian & Pacific Island	6 (0.06%)	49 (0.04%)	165 (0.04%)
Other	1,281 (13.68%)	18,500 (16.56%)	94,673 (24.74%)
U.S. Armed Forces	4	59	105
Households			
2029 Projection	4,805	48,745	158,497
2024 Estimate	4,548	44,647	146,279
2020 Census	4,275	43,166	143,773
Growth 2024-2029	5.65%	9.18%	8.35%
Growth 2020-2024	6.39%	3.43%	1.74%
Owner Occupied	1,545 (33.97%)	21,956 (49.18%)	68,464 (46.80%)
Renter Occupied	3,004 (66.05%)	22,690 (50.82%)	77,815 (53.20%)
Avg. Household Income			
2024 Avg Household Income	\$113,043	\$109,536	\$97,589
2024 Med Household Income	\$82,586	\$83,325	\$70,198

MAJOR EMPLOYERS



The property is situated within the robust and dynamic Richardson submarket, one of North Texas' premier employment hubs renowned for its exceptional economic resilience and diverse corporate base. This area is anchored by a formidable concentration of Fortune 500 companies and major corporate campuses, ensuring sustained demand for commercial and residential real estate. Key among these are major insurance carriers like State Farm, which occupies a massive 2 million-square-foot campus at CityLine, and Blue Cross and Blue Shield of Texas, both of which provide significant employment stability. The market's strength is further amplified by a heavy concentration of technology and defense giants, including the long-standing presence of Texas Instruments with its cutting-edge semiconductor fabrication plants and Raytheon's significant intelligence and information services operations at CityLine. The nearby presence of major financial institutions such as JPMorgan Chase and Capital One, along with Toyota's North American headquarters in neighboring Plano, underscores the region's status as a premier corporate destination. This powerful synergy is supported by The University of Texas at Dallas, a Tier One research institution that fuels the local economy with a steady pipeline of talent and innovation, cementing the area's position as a resilient and high-growth investment landscape.

Employer	Industry	Employees	Distance
State Farm	Insurance	12,000	2.5 mi
Texas Instruments	Technology	10,000	7.2 mi
JPMorgan Chase & Co.	Financial Services	6,500	15.0 mi
Liberty Mutual	Insurance	5,000	14.7 mi
Capital One	Financial Services	5,000	15.8 mi
Toyota Motor North America	Automotive	4,000	15.3 mi
Blue Cross Blue Shield of Texas	Healthcare	4,000	1.4 mi
GEICO	Insurance	4,000	1.5 mi
University of Texas at Dallas	Education	3,000	3.4 mi
Raytheon	Defense	1,700	3.2 mi



Information About Brokerage Services

11-03-2025

Texas law requires all real estate license holders to give the following information about brokerage services to prospective buyers, tenants, sellers and landlords.

TYPES OF REAL ESTATE LICENSE HOLDERS:

● **A BROKER** is responsible for all brokerage activities, including acts performed by sales agents sponsored by the broker.

● **A SALES AGENT** must be sponsored by a broker and works with clients on behalf of the broker.

A BROKER'S MINIMUM DUTIES REQUIRED BY LAW (A client is the person or party that the broker represents):

- Put the interests of the client above all others, including the broker's own interests;
- Inform the client of any material information about the property or transaction received by the broker;
- Answer the client's questions and present any offer to or counter-offer from the client; and
- Treat all parties to a real estate transaction honestly and fairly.

WRITTEN AGREEMENTS ARE REQUIRED IN CERTAIN SITUATIONS: A license holder who performs brokerage activity for a prospective buyer of residential property must enter into a written agreement with the buyer before showing any residential property to the buyer or if no residential property will be shown, before presenting an offer on behalf of the buyer. This written agreement must contain specific information required by Texas law. For more information on these requirements, see section 1101.563 of the Texas Occupations Code. **Even if a written agreement is not required, to avoid disputes, all agreements between you and a broker should be in writing and clearly establish: (i) the broker's duties and responsibilities to you and your obligations under the agreement; and (ii) the amount or rate of compensation the broker will receive and how this amount is determined.**

A LICENSE HOLDER CAN REPRESENT A PARTY IN A REAL ESTATE TRANSACTION:

AS AGENT FOR OWNER (SELLER/LANDLORD): The broker becomes the property owner's agent through an agreement with the owner, usually in a written listing to sell or property management agreement. An owner's agent must perform the broker's minimum duties above and must inform the owner of any material information about the property or transaction known by the agent, including information disclosed to the agent or subagent by the buyer or buyer's agent. **An owner's agent fees are not set by law and are fully negotiable.**

AS AGENT FOR BUYER/TENANT: The broker becomes the buyer/tenant's agent by agreeing to represent the buyer, usually through a written representation agreement. A buyer's agent must perform the broker's minimum duties above and must inform the buyer of any material information

about the property or transaction known by the agent, including information disclosed to the agent by the seller or seller's agent. **A buyer/tenant's agent fees are not set by law and are fully negotiable.**

AS AGENT FOR BOTH - INTERMEDIARY: To act as an intermediary between the parties the broker must first obtain the written agreement of *each party* to the transaction. The written agreement must state who will pay the broker and, in conspicuous bold or underlined print, set forth the broker's obligations as an intermediary. A broker who acts as an intermediary:

- Must treat all parties to the transaction impartially and fairly;
- May, with the parties' written consent, appoint a different license holder associated with the broker to each party (owner and buyer) to communicate with, provide opinions and advice to, and carry out the instructions of each party to the transaction.
- Must not, unless specifically authorized in writing to do so by the party, disclose:
 - that the owner will accept a price less than the written asking price;
 - that the buyer/tenant will pay a price greater than the price submitted in a written offer; and
 - any confidential information or any other information that a party specifically instructs the broker in writing not to disclose, unless required to do so by law.

A LICENSE HOLDER CAN SHOW PROPERTY TO A BUYER/TENANT WITHOUT REPRESENTING THE BUYER/TENANT IF:

- The broker has not agreed with the buyer/tenant, either orally or in writing, to represent the buyer/tenant;
- The broker is not otherwise acting as the buyer/tenant's agent at the time of showing the property;
- The broker does not provide the buyer/tenant options or advise regarding the property or real estate transactions generally; and
- The broker does not perform any other act of real estate brokerage for the buyer/tenant.

Before showing a residential property to an unrepresented prospective buyer, a license holder must enter into a written agreement contains the information required by section 1101.563 of the Texas Occupations Code. The agreement may not be exclusive and must be limited to no more than 14 days.

LICENSE HOLDER CONTACT INFORMATION: This notice is being provided for information purposes. It does not create an obligation for you to use the broker's services. Please acknowledge receipt of this notice below and retain a copy for your records.

Marcus & Millichap	9002994	tim.speck@marcusmillichap.com	972-755-5200
Licensed Broker/Broker Firm Name or Primary Assumed Business Name	License No.	Email	Phone
Tim A. Speck	432723	tim.speck@marcusmillichap.com	972-755-5200
Designated Broker of Firm	License No.	Email	Phone
Licensed Supervisor of Sales Agent/Associate	License No.	Email	Phone
Sales Agent/Associate's Name	License No.	Email	Phone

Regulated by the Texas Real Estate Commission

Buyer/Tenant/Seller/Landlord's Initials

Date

Information available at www.trec.texas.gov

IABS 1-2

Philip Levy

Executive Managing Director

(972) 755-5225

PLevy@mmreis.com

Chris Gainey

Senior Managing Director

(817) 932-6122

chris.gainey@marcusmillichap.com

Marcus & Millichap
LEVY RETAIL GROUP